

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

JOSEPH ARZU,

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER
JONATHAN BURKE, Shield No. 4255, SERGEANT
ROBERT HORAI, and POLICE OFFICER JOHN DOES #
1-4 (names and number of whom are unknown at present),
and other unidentified members of the New York City
Police Department,

Index No.:

The Basis of Venue is:

Location of Incident

Plaintiff designates New York
County as the place of trial.

Defendants.

----- X

To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your Answer to the Complaint, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 14, 2016

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER JONATHAN BURKE, Shield No. 4255, Patrol Borough Manhattan
South, 230 East 21st Street, New York, NY 10010
SERGEANT ROBERT HORAI

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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JOSEPH ARZU,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
JONATHAN BURKE, Shield No. 4255, SERGEANT
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1-4 (names and number of whom are unknown at present),
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Defendants.

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff JOSEPH ARZU, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On or about April 14, 2013 at approximately 2:00 p.m. in the vicinity of 47th Street and Broadway, New York, New York, plaintiff Joseph Arzu, was subject to an unlawful stop, question, frisk, search, false arrest and false imprisonment by the defendant New York City police officers. Thereafter, plaintiff was maliciously prosecuted by the defendant police officers. Further, the defendant police officers abused process and denied plaintiff the right to a fair trial. Defendants also violated plaintiff's First Amendment rights. As a direct and proximate cause of the false, misleading and incomplete information provided to the district attorney's office by the defendant police officers, a prosecution was initiated against plaintiff, without probable cause. The prosecution terminated in plaintiff's favor when all charges against plaintiff were dismissed on or about April 29, 2014. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, arrested, maliciously prosecuted, denied plaintiff his right to due process and right to fair trial, subjected plaintiff to abuse of process, and violated his First Amendment rights in violation of the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Joseph Arzu is a resident of the state of New York.

3. POLICE OFFICER JONATHAN BURKE, Shield No. 4255, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER JONATHAN BURKE, Shield No. 4255, is and was at all times relevant herein, assigned to Patrol Borough Manhattan South.

5. POLICE OFFICER JONATHAN BURKE, Shield No. 4255, is being sued in his individual and official capacity.

6. SERGEANT ROBERT HORAI is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT ROBERT HORAI, is and was at all times relevant herein, assigned to Patrol Borough Manhattan South.

8. SERGEANT ROBERT HORAI, is being sued in his individual and official capacity.

9. New York City Police Officer John Does #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. Police Officer John Does #1-4 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. On April 14, 2013, at approximately 2:00 p.m., plaintiff, was lawfully present in the vicinity of 47th Street and Broadway, New York, New York, when the individually named defendant police officers unlawfully stopped, questioned, frisked, searched, unlawfully seized, falsely arrested, falsely imprisoned plaintiff, and subjected plaintiff a lengthy malicious criminal prosecution, abuse of process and the denial of his right to due process and the right to a fair trial. Plaintiff's First Amendment rights were also violated by the individually named defendants.

16. On April 14, 2013, at approximately 2:00 p.m., plaintiff was lawfully distributing compact discs containing his own original music, which are protected items under the First Amendment.

17. While plaintiff was lawfully distributing his compact discs, the defendant police officers unlawfully approached, stopped, seized, and searched plaintiff, without reasonable suspicion, probable cause, or any legal justification.

18. At no time did the defendant police officers observe plaintiff commit a crime or break a law, and the defendant police officers did not have a legal basis or probable cause to stop, question, frisk, search, or arrest plaintiff.

19. Nevertheless, the defendant police officers unlawfully handcuffed plaintiff and arrested him without legal justification or probable cause.

20. At no time did plaintiff commit a crime, nor did the defendant police officers have any reason to believe he committed a crime.

21. The defendant police officers forcibly transported plaintiff, against his will, to the 18th precinct stationhouse.

22. Defendant Burke falsely communicated to the New York County District Attorney's Office that plaintiff had committed a crime despite knowing that they lacked a legal and a factual basis to allege that plaintiff committed any crime.

23. Defendant Burke falsely informed employees of the New York County District Attorney's Office that they had observed plaintiff commit the following crimes/offenses: Failure to Disclose the Origin of a Recording in the Second Degree (PL 275.35); Disorderly Conduct (PL 240.20).

24. Specifically, defendant Burke stated that he observed plaintiff “approaching multiple passerby and showing them a CD that the defendant was holding.”

25. Defendant Burke further informed the New York County District Attorney’s Office that he observed “[f]ifteen (15) people who were passing by on the sidewalk had to to walk around the defendant in order to proceed.”

26. At no point in time did plaintiff prevent individuals from proceeding on the sidewalk and did not cause anyone to walk around them in order to proceed.

27. At no point in time did plaintiff’s actions cause five (15) pedestrians walk around him to proceed.

28. On or about April 15, 2013, the defendant police officers transported plaintiff from the 18th precinct to Manhattan Central Booking where he was unlawfully detained in filthy and crowded holding cells for many hours, with individuals accused of committing serious violent crimes.

29. On April 15, 2013, at approximately 2:00 p.m., after approximately 24 hours in police custody, plaintiff was arraigned in New York County Criminal Court and was released on his own recognizance.

30. Thereafter, plaintiff was forced to appear in Court on approximately 8 occasions before all charges against plaintiff were dismissed on April 29, 2014.

31. Some of the police officer defendants observed the violation of plaintiff’s rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, abuse of process, denial of due process and a fair trial, and violation of plaintiff’s First Amendment rights.

32. Additionally, there is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers unlawfully arrest individuals when they are lawfully distributing compact discs containing their own original music, which are protected items under the First Amendment. See Antonious Pharrisee v. The City of New York et al., 13 CV 3716 (KBF).

33. There have been several prior lawsuits, wherein members of the New York City Police Department unlawfully arrest individuals when they are lawfully distributing compact discs containing their own original music, which are protected items under the First Amendment. See Antonious Pharrisee v. The City of New York et al., 13 CV 3716 (KBF).

34. Further, there is a police, practice, or custom within the New York City Police Department, wherein New York City Police Officers selectively enforce laws against individuals and other CD vendors, and not against other vendors similarly situated in time and place, in order

to curtail the exercise of their First Amendment rights and thus in violation of the Fourteenth Amendment's guarantee of equal protection. See Antonious Pharrisee v. The City of New York et al., 13 CV 3716 (KBF).

35. As a result of defendant City of New York and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers unlawfully arrest individuals when they are lawfully distributing compact discs containing their own original music, which are protected items under the First Amendment, there is a pattern, policy, custom or practice of New York City Police Officers unlawfully arresting individuals without a factual basis supporting a legal reason to do so.

36. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution denial of the right to due process and a fair trial and abuse of process, and violation of plaintiff's first amendment rights by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

37. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 36 with the same force and effect as if more fully set forth at length herein.

38. The individually named police officer defendants while acting in concert, under the color of law and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, and frisked, unlawfully seized, unlawfully searched, unlawfully strip searched, falsely arrested, and falsely imprisoned, maliciously prosecuted, and subjected to abuse of process without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

39. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

40. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 37 with the same force and effect as if more fully set forth at length herein.

41. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

42. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the United States Constitution.

43. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

44. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

47. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

48. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

49. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

50. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

51. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. The illegal approach, pursuit, stop and search inside plaintiff's pockets, and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

53. Defendants lacked probable cause to search plaintiff.

54. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the Constitution of the United States.

55. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

56. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

57. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein

58. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

59. Defendants commenced and continued a criminal proceeding against plaintiff.

60. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

61. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

62. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment and Fourteenth Amendment Rights to Due Process and the Right to a Fair Trial

64. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

66. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

67. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

68. In withholding/creating false evidence against plaintiff Joseph Arzu, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the United States Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

69. As a result of the foregoing, plaintiff Joseph Arzu, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process

70. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

71. Defendants issued legal process to place plaintiff Joseph Arzu under arrest.

72. Defendants arrested plaintiff Joseph Arzu in order to obtain a collateral objective outside the legitimate ends of the legal process.

73. Defendants acted with intent to do harm to plaintiff Joseph Arzu, without excuse or justification.

74. As a result of the foregoing, plaintiff Joseph Arzu sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

75. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

EIGHTH CAUSE OF ACTION

Violation of Plaintiff's First and Fourteenth Amendment Rights

76. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein.

77. Plaintiff was aware of his constitutional right to distribute compact discs containing his own original music, which are protected items under the First Amendment.

78. The duties of the defendant police officers include the duty to protect the constitutional rights of persons who wish to express their First Amendment rights publicly in a lawful manner.

79. Shortly before the incident described herein, plaintiff was lawfully distributing compact discs containing his own original music.

80. As a result of plaintiff's exercise of his First Amendment right to lawfully distribute compact discs containing his own original music, the individually named defendant police officers falsely arrested plaintiff.

81. By virtue of the foregoing, the individually named defendants intentionally deprived plaintiff of his rights secured by the First Amendment of the United States Constitution and as such, are liable to plaintiff under 42 U.S.C. § 1983.

82. As a direct and proximate result of defendants of the individually named defendants' deprivations of plaintiff's constitutional rights, plaintiff suffered the injuries and damages set forth above.

NINTH CAUSE OF ACTION

Failure to Intervene

83. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein.

84. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

85. Defendants failed to intervene to prevent the unlawful conduct described herein.

86. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

87. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the United States Constitution.

88. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

89. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

90. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 89 with the same force and effect as if more fully set forth at length herein.

91. The City of New York (the "City"), through widespread policies, practices and customs, and through a failure to provide adequate training or supervision of its agents rising to the level of deliberate indifference, directly caused constitutional violations suffered by plaintiff.

92. The acts complained of were carried out by the aforementioned defendants in their capacities as police officers and officials pursuant to customs, policies, usages, practices, procedures and rules of the City and NYPD, all under the supervision of ranking officers of the NYPD. These were not isolated incidents of unconstitutional conduct by individuals.

93. The aforementioned customs, practices, procedures and rules of the City and NYPD include, but are not limited to: 1) arresting persons without probable cause to curtail the exercise of their First Amendment rights; and 2) selectively enforcing laws against Plaintiff and other CD vendors and not against other vendors similarly situated in time and place, in order to curtail the exercise of plaintiff's First Amendment rights and thus in violation of the Fourteenth Amendment's guarantee of equal protection.

94. At the time of the aforementioned constitutional violations, the City and NYPD were and had been on notice of such unconstitutional conduct, customs, and de facto policies, such that the failure of the City and NYPD to take appropriate remedial action amounted to deliberate indifference to the constitutional rights of persons with whom the police come in contact. In light of the extensive pattern of well-settled, pervasive customs and policies causing constitutional violations, documented in part infra, the need for more effective supervision and other remedial measures was patently obvious, but the City and NYPD made no meaningful attempt to prevent future constitutional violations.

95. At the time of the aforesaid constitutional violations, Plaintiff was engaged in the promotion of goods whose predominant purpose is expressive: to wit, CDs featuring original musical works by Plaintiff, or compilation CDs which include original musical works by Plaintiff. The distribution of such predominantly expressive materials is protected under the First Amendment of the Constitution.

96. Prior to, at the time of, and subsequent to Plaintiff's arrest, numerous other individuals were similarly engaged in the distribution of CDs featuring their own original musical works or compilations including their own original music works. Such individuals were also frequently subject to arrest, ticketing, and harassment over the course of the past several years, such that this illegal police conduct amounts to a widespread or persistent custom and practice of the NYPD.

97. Defendant's actions both towards Plaintiff and such other CD vendors had an immediate and specific chilling effect on Plaintiff and others similarly situated in that, upon arrest, they were unable to continue the promotion and distribution of their predominantly expressive CDs, and therefore their activities protected by the First Amendment were curtailed and cut short.

98. Defendants have violated the Fourteenth Amendment rights to equal protection of Plaintiff by selectively arresting, ticketing, and harassing CD vendors. Plaintiff and other CD vendors were arrested, ticketed, and harassed while legally distributing CDs while other vendors operating at the same times and places were not. This selective treatment was based on constitutionally impermissible considerations: specifically, defendants targeted Plaintiff and other CD vendors with intent to inhibit the distribution of their predominantly expressive CDs on the street, which is protected First Amendment activity.

99. In the course of the illegal arrest, Defendants seized and withheld Plaintiff's property. Defendant's ongoing, widespread and persistent policy of seeking forfeiture of CD vendors' expressive items amounts to a deprivation of property without due process of law. No Constitutionally adequate safeguards are in place to protect Plaintiff's property interests, and thus defendant's conduct violates the Fourteenth Amendment.

100. The existence of aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented by the following civil rights actions and parallel prosecutions of police officers:

- a. Lederman v. Adams, 45 F.Supp.2d 259 (S.D.N.Y. 1999) (denying summary judgment to defendants where police repeatedly arrested plaintiff street art vendor, thereby chilling exercise of his First Amendment rights; court found evidence of a police effort to "rid the streets" of certain types of vendors);
- b. Espinoza v. City of NY, 11-CV-2108 (CM), 2012 WL 4761565 (S.D.N.Y. Aug. 3, 2012) (declining to dismiss selective prosecution claim where plaintiff street vendor was repeatedly harassed and issued summonses, allegedly based on her exercise of a constitutional right, while other, similarly situated street vendors were not);
- c. Bissinger v. City of NY, 06-CV-2325 (WHP), 2007 WL 2826756 (S.D.N.Y. Sep. 24, 2007) (denying motion for partial judgment on the pleadings with respect to Monell-based selective enforcement claims where plaintiff photographic art vendors in midtown Manhattan were harassed and repeatedly arrested on charges that were ultimately dismissed;
- d. Antonious Pharrisee v. The City of New York et al., 13 CV 3716 (KBF).

101. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

102. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

103. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

104. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully arrested and had his First Amendment rights violated by the individually named defendant police officers.

105. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

JURY DEMAND

106. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Joseph Arzu demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
April 14, 2016

By: _____ /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER JONATHAN BURKE, Shield No. 4255, Patrol Borough Manhattan
South, 230 East 21st Street, New York, NY 10010
SERGEANT ROBERT HORAI

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
April 14, 2016

/s/
STUART E. JACOBS